

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1198

By: Maynard

AS INTRODUCED

An Act relating to revenue and taxation; amending 68 O.S. 2021, Section 2890, as amended by Section 1, Chapter 5, 1st Extraordinary Session, O.S.L. 2023 (68 O.S. Supp. 2024, Section 2890), which relates to the additional homestead exemption; modifying definition of gross household income; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 68 O.S. 2021, Section 2890, as amended by Section 1, Chapter 5, 1st Extraordinary Session, O.S.L. 2023 (68 O.S. Supp. 2024, Section 2890), is amended to read as follows:

Section 2890. A. In addition to the amount of the homestead exemption authorized and allowed in Section 2889 of this title, an additional exemption is hereby granted, to the extent of One Thousand Dollars (\$1,000.00) of the assessed valuation on each homestead of heads of households whose gross household income from all sources for the preceding calendar year did not exceed Thirty Thousand Dollars (\$30,000.00).

1 B. The term "gross household income" as used in this section
2 means ~~the gross amount of income of every type, regardless of the~~
3 ~~source, received by all persons occupying the same household,~~
4 ~~whether such income was taxable or nontaxable for federal or state~~
5 ~~income tax purposes, including pensions, annuities, federal Social~~
6 ~~Security, unemployment payments, public assistance payments,~~
7 ~~alimony, support money, workers' compensation, loss of time~~
8 ~~insurance payments, capital gains and any other type of income~~
9 ~~received, and excluding gifts. The term "gross household income"~~
10 ~~shall not include any veterans' disability compensation payments or~~
11 ~~the amount of any federal stimulus or relief payments related to the~~
12 ~~COVID-19 virus~~ federal adjusted gross income. The term "head of
13 household" as used in this section means a person who as owner or
14 joint owner maintains a home and furnishes support for the home,
15 furnishings, and other material necessities.

16 C. The application for the additional homestead exemption shall
17 be made each year on or before March 15 or within thirty (30) days
18 from and after receipt by the taxpayer of notice of valuation
19 increase, whichever is later, and upon the form prescribed by the
20 Oklahoma Tax Commission, which shall require the taxpayer to certify
21 as to the amount of gross income. Upon request of the county
22 assessor, the Oklahoma Tax Commission shall assist in verifying the
23 correctness of the amount of the gross income.

1 D. For persons sixty-five (65) years of age or older as of
2 March 15 and who have previously qualified for the additional
3 homestead exemption, no annual application shall be required in
4 order to receive the exemption provided by this section; however,
5 any person whose gross household income in any calendar year exceeds
6 the amount specified in this section in order to qualify for the
7 additional homestead exemption shall notify the county assessor and
8 the additional exemption shall not be allowed for the applicable
9 year. Any executor or administrator of an estate within which is
10 included a homestead property exempt pursuant to the provisions of
11 this section shall notify the county assessor of the change in
12 status of the homestead property if such property is not the
13 homestead of a person who would be eligible for the exemption
14 provided by this section.

15 SECTION 2. This act shall become effective November 1, 2025.

16

17 60-1-10109 AO 01/01/25

18

19

20

21

22

23

24